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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 09-10-2026

CORAM

THE HON'BLE MR.JUSTICE S.KARTHIKEYAN

CRL A(MD) No. 1150 of 2026

CNR:{HCMD011350712026}

Karuppasamy
S/o.Manthaidurai @ Manthakalai,
3/70,
3rd Ward,
Keeranur,
Poonjuthi,
Melur Taluk,
Madurai District.

.. Appellant

Vs

1. The State of Tamil Nadu, rep by The Deputy Superintendent of Police,
   Melur Taluk,
   Madurai District.

2. The Inspector of Police, Melur
   Police Station,
   Madurai District,
   Crime No.560/2025.

3. Muthuraja
   S/o.Sangilipandi,
   Colony Street,
   Keeranoor,
   Poonjuthi Post,
   Melur Taluk,
   Madurai District.

..Respondent(s)

PRAYER: Criminal Appeal filed under Section 14-A(2) of the SC/ST (Amendment) Act, 2015, to set aside the order dated made in Cr.M.p.No.403 of 2026 on the file of the learned III Additional District Court (PCR), Madurai and

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enlarge the appellant on bail in Spl.S.C.No.28 of 2026 in connection with Crime No.560 of 2025 on the file of the respondent police.

For Appellant(s): Mr.M.A.Palanisami

For Respondent(s): Mr.G.Ganesh Kumar (R1 & R2)
Government Advocate (Criminal Side)

No appearance (R3)

JUDGMENT

This appeal is directed against the order dated 01.09.2026, passed by the learned III Additional District and Sessions Judge (PCR), Madurai, in Crl.M.P.No. 403 of 2026, declining to grant bail to the appellant.

2.The learned counsel for the appellant submitted that the appellant had approached this Court seeking a direction in Crl.O.P. (MD) No. 17417 of 2026, and, pursuant to the order dated 14.08.2026, surrendered before the trial Court on 01.09.2026. However, the trial Court dismissed the bail application and remanded him to judicial custody. The appellant has been in judicial custody since then. Except the appellant, all the other co-accused have been granted bail either by the trial Court or by this Court.

3.The learned counsel further submitted that the investigation has already been completed and the case has been taken on file. The trial Court, without considering the above aspects, dismissed the bail

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application solely on the ground that a non-bailable warrant had been pending against the appellant since 10.04.2026. Therefore, the learned counsel prayed for setting aside the order of the trial Court and granting bail to the appellant.

4.The learned Government Advocate (Criminal Side) submitted that, based on the complaint lodged by the third respondent, a case in Crime No. 560 of 2025 was registered for the offences punishable under Sections 191(2), 191(3), 296(b), 118(2), 109(1) and 351(3) of the Bharatiya Nyaya Sanhita (BNS), and Sections 3(1)(r), 3(1)(s) and 3(2)(v) of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989. He further submitted that the appellant had been absconding since the registration of the First Information Report and, therefore, an absconding charge sheet was filed before the trial Court, pursuant to which a non-bailable warrant (NBW) was issued. The respondent police were unable to execute the said warrant. In the meantime, the appellant approached this Court and obtained a direction to surrender before the trial Court. The trial Court, taking into consideration the conduct of the appellant and the fact that he had been absconding, dismissed the bail application. Therefore, the learned Government Advocate strongly opposed the grant of bail to the appellant.

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5.This Court has given its thoughtful consideration to the rival submissions put forth by either side.

6.On careful perusal of the records, it is seen that the investigation in the present case has already been completed and the case has been taken on file in Special S.C. No. 28 of 2026. An absconding charge sheet was filed against the appellant, and all the other accused have been granted bail either by the trial Court or by this Court.

7.The appellant approached this Court in Crl.O.P(MD) No.17417 of 2026 and obtained a direction, by order dated 14.08.2026, to consider the bail application and the petition to recall the warrant on the date of surrender, after affording due opportunity to the de facto complainant. The trial Court took note of the fact that the non-bailable warrant had been pending against the appellant since 10.04.2026 and that the appellant had failed to explain why he had not surrendered before the trial Court until 01.09.2026. Hence, the trial Court dismissed the bail application.

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8.However, on careful perusal of the order of the trial Court, it is seen that the trial Court also observed that all the co-accused, except the appellant, had been released on bail. In such circumstances, denying bail to the appellant alone would not be fair, as the principle of parity is required to be considered when the accused are similarly placed.

9.Considering the aforesaid circumstances, this Court is inclined to allow this criminal appeal, subject to the imposition of stringent conditions.

10.Accordingly, this Criminal Appeal is allowed and the order passed by the learned III Additional District and Sessions Judge (PCR), Madurai in Crl.M.P.No.403 of 2026, by order dated 01.09.2026, is hereby set aside. The appellant is ordered to be released on bail on the following conditions:-

i) The appellant shall execute a bond for a sum of Rs.20,000/- (Rupees Twenty Thousand only) with two sureties each for a like sum to the satisfaction of the learned III Additional District and Sessions Judge (PCR), Madurai.

ii) The appellant and the sureties shall submit a copy of their Aadhaar Card or any other identity card issued by the

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Government in proof of their residence address;

iii) The appellant and the sureties shall file an affidavit of undertaking before the respondent police that the appellant will not involve in any offence in future.

iv) The appellant shall report before the trial Court daily at 10.30 a.m., until further orders, except the days, on which their appearance is required before the trial Court.

v) On violation of any of the above conditions by the appellant, the respondent police shall move an application for cancellation of the bail.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

PS

Note:- Issue Order Copy on 09.10.2026.

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To

1.The III Additional District and Sessions Judge (PCR),

Madurai.

2.The Deputy Superintendent of Police
Melur Taluk,
Madurai District.

3.The Inspector Of Police, Melur Police Station,
Madurai District.

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S.KARTHIKEYAN, J.
ps

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